

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

IWG INTERNATIONAL WOOD GROUP OF SC AND
HONEST TRADING INTERNATIONAL LLC, *Complainants*

v.

DB SCHENKER USA, INC., *Respondent*.

DOCKET NO. 25-16

Served: April 10, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER REJECTING COMPLAINANTS' SUPPLEMENTAL OPENING BRIEF, AND REQUIRING
COMPLAINANTS' TO REFILE OPENING BRIEF**

On August 7, 2025, the Commission issued a Notice of Filing of Complaint and Assignment ("Notice") for this proceeding. Respondent filed Respondent's Verified Answer and Affirmative Defenses on September 22, 2025.

Complainants' Opening Brief, proposed findings of fact and appendix were due March 19, 2026. Complainants did not timely file their brief and accompanying documents. On March 20, 2026, I issued an Order for Complainants to Show Cause No Later than March 26, 2026, requiring Complainants to explain whether they needed additional time to file their opening brief.

Later in the day on March 20, 2026, the owner of Complainant IWG International Wood Group of SC ("IWG") sent an email to the Office of Administrative Law Judges ("OALJ") stating that he had a family emergency. On March 24, 2026, Complainants filed Complainants' Post-Hearing Brief, Proposed Findings of Fact, and Appendix ("Complainants' Opening Brief").

On March 24, 2026, I issued an Order Accepting Complainants' Opening Brief, and Setting Remaining Schedule (the "March 24 Order"). In the March 24 Order, I accepted Complainants' Opening Brief for filing, noting that I found good cause for the untimely filing.

Subsequently, upon further review of Complainants' Opening Brief, it was apparent that Complainants failed to abide by the Initial Order, specifically Paragraph 7, which states:

Attachments. When documents are attached to a filing, the exhibits should be in one PDF document with sequential page numbers (bates numbers) with a unique prefix such as "CX" for Complainant's filing and "RX" for Respondent's filing. It is preferred that CX and RX prefixes are reserved for appendices accompanying briefing on the merits and that alternate prefixes are used for earlier appendices

(i.e., for appendices accompanying motions). Excel documents should have the bates number in the title. A bates number should uniquely identify a single document – bates numbers may not be repeated.

On April 1, 2026, OALJ emailed Complainants, stating:

Your opening brief appears to contain a number of embedded documents. Please extract the embedded documents, and submit them to the Office of the Secretary under the heading: "Supplemental Opening Brief." Please ensure that your filing complies with paragraph 7 of the Initial Order.

Instead of complying with the Initial Order, or with OALJ's instructions of April 1, 2026, Complainants emailed the following to the Office of the Secretary on April 1, 2026, without copying opposing counsel or OALJ:

Dear Office of the Secretary,

Please find below the links to the supporting documentation for our Supplemental Opening Brief in the above-referenced matter.

The attached materials consist of numerous documents submitted in support of our complaint. These documents have been organized into folders and labeled in accordance with Paragraph 7 of the Initial Order.

Should you have any questions or require any additional information, please do not hesitate to contact me.

APPENDIX A - YMJAE165376334 - YHU25912806 - [...]
APPENDIX B - YMJAE165376232 - YHU25912853 - [...]
APPENDIX C - YMJAE165375938 - YHU25912863 - [...]
APPENDIX D - RICFE2007400 - SITA RAM CLAIMS - [...]
APPENDIX F - 2154787640 - OVERSEAS TIMBER CLAIMS - [...]
APPENDIX E - IWG - HONEST TRADING - DB SCHENKER - [...].

Hyperlinks to a Google drive were included in the email.

Complainants' Supplemental Opening Brief does not comply with Paragraph 7 of the Initial Order, which requires that attachments be in "one PDF document." Attachments are not to be submitted via hyperlink. This is not a "busywork" requirement. This requirement exists to ensure that the information submitted by the parties is preserved in a format that enables appropriate, fair, and unbiased review, both by myself and potentially by other tribunals. If a party does not have a program that allows it to convert documents into PDF format, or combine multiple PDFs into a single PDF, documents typically may be printed and taken to a vendor who can combined the printed documents into a single PDF.

Paragraph 7 of the Initial Order also requires that the parties affix page numbers to the PDF. Again, this is not an idle requirement. Page numbers allow the parties and the reviewing

tribunal to identify records clearly and quickly. If a party does not have a program that can allow page numbers to be added to PDF images, a party may write page numbers by hand or with a typewriter.

I further call Complainants' attention to Paragraph 23 of the Initial Order, which contemplates that the parties are to submit a separate proposed findings of fact with their brief, and submit the attachments in an appendix. The appendix is described in Paragraphs 24-30 of the Initial Order. Similar to the requirement regarding page numbers, this requirement exists to allow the parties and the reviewing tribunal to pinpoint the key factual issues in the litigation, and line the facts up with supporting evidence.

If Complainants are concerned about any confidential materials, Complainants are to abide by Paragraphs 31-38 of the Initial Order. In general, legal proceedings are open to the public, meaning, among other things, the public has a right to review all filings. If, however, a party has a good reason to keep some information from the public, the party may make a motion asking for some records to remain confidential despite the public nature of this proceeding. Paragraphs 31-38 of the Initial Order set forth the procedure for making a motion for confidential treatment.

Accordingly, for the sake of clarifying the record, and ensuring that all information is properly submitted and preserved, it is **HEREBY ORDERED** that Complainants' Supplemental Opening Brief, which Complainants attempted to file via email on April 1, 2026, is **REJECTED**. It is

FURTHER ORDERED that Complainants' Opening Brief of March 24, 2026, is **STRICKEN** and not to be docketed. It is

FURTHER ORDERED that Complainants are to file a revised Opening Brief, Proposed Findings of Fact, and appendix, which comply with the requirements of the Initial Order, no later than **April 24, 2026**. It is

FURTHER ORDERED that Respondent's Response Brief, Respondent's Response to Complainants' Proposed Findings of Facts, Respondent's Proposed Findings of Facts, and appendix are now due **May 22, 2026**. It is

FURTHER ORDERED that Complainants' Reply Brief and Complainants' Response to Respondent's Proposed Findings of Fact are now due **June 5, 2026**.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2026.04.10
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Richard Ambrow
Administrative Law Judge